



Guyana

Detailed Assessment Results

I. Legal Frameworks 3.25 / 5

II. Mining policies 3.03 / 5

III. Investigation and enforcement 3.28 / 5

Total score 9.56 / 15.00



Each coloured segment represents one dimension. Grey shows remaining headroom to 15.

About this scorecard

The **Amazon Mining Policy Scoreboard**, led by Amazon Conservation Association, evaluates national gold mining governance across Amazon countries. Each country is assessed across three dimensions — **Legal Frameworks**, **Mining Policies**, and **Investigation & Enforcement** — each worth up to 5 points, for a maximum total of **15 points**. Within each dimension, five categories (each normalised 0–1) are evaluated through multiple criteria.

Guyana received a total score of **9.56 out of 15.00**, ranking **5th out of 8 Amazon countries** assessed. The pages that follow present the full set of criteria, justifications, and sources organised by dimension and category.

■ Legal Frameworks

■ Mining policies

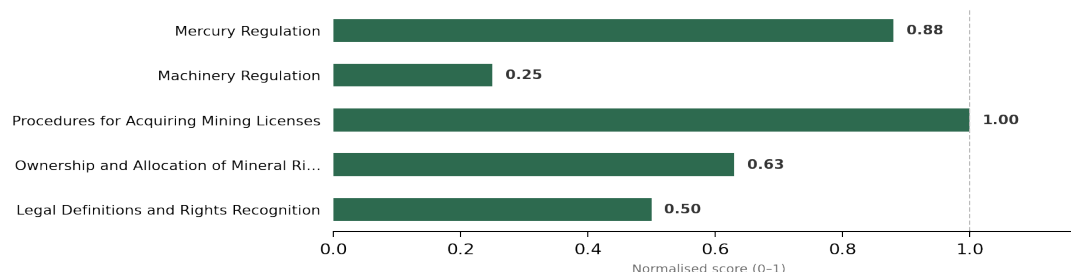
■ Investigation and enforcement

This assessment was produced by Amazon Conservation as part of the [Amazon Mining Policy Scoreboard](#), a component of [Amazon Mining Watch](#). The assessment for each country was conducted with support from, respectively: Conservación Amazonica – ACEAA (Bolivia), Instituto Centro de Vida (Brazil), Fundación para la Conservación y el Desarrollo Sostenible (Colombia), Fundación Ecociencia (Ecuador), Amazon Conservation Team (Guyana and Suriname), Conservación Amazonica – ACCA (Peru), and SOS Orinoco (Venezuela).

I. Legal Frameworks

3.25 / 5.00

Category scores



A. Legal Definitions and Rights Recognition

Score: 0.50 / 1.00

Does national legislation clearly define the legal conditions under which gold mining is permitted, and distinguish them from activities considered illegal?

1.0

Criterion 1

Justification

Guyana's national legislation provides a clear and comprehensive framework that defines the legal conditions for gold mining and distinguishes permitted activities from illegal ones. The Mining Act 1989 establishes that all minerals are vested in the State and that any person wishing to engage in mining must do so under a license or permit granted by the Guyana Geology and Mines Commission (GGMC). Section 14(1)(a) of the Act explicitly prohibits mining without such authorization, thereby creating a clear legal distinction between legal and illegal mining operations. This legal structure provides a solid foundation for regulating the mining sector and enforcing compliance.

Sources

Mining Act 1989 (Act No. 20 of 1989). Available at:

https://www.parliament.gov.gy/new2/documents/acts/8532-act_20_of_1989_mining.pdf Guyana Geology and Mines Commission (GGMC) website. Available at: <https://www.ggmc.gov.gy/>

Secondary Sources:

Dentons Global Mining Guide: Guyana (January 17, 2022). Available at:

<https://www.dentons.com/en/insights/newsletters/2022/january/17/dentons-global-mining-guide/dentons-global-mining-guide-2022/guyana>

Does national legislation provide a clear legal definition of artisanal and small-scale mining (ASM), distinct from large-scale or industrial mining?

0.0

Criterion 2

Justification

While Guyana's legal framework recognizes different scales of mining (small, medium, and large), it does not provide a clear and distinct legal definition of "artisanal" mining. The National Mineral Sector Policy Framework and Actions, 2019-2029 notes that the term "artisanal" is considered a "socially-loaded term" and is not typically used in the country's legal framework. Instead, the framework uses the term "small-scale mining" to encompass what is generally understood as artisanal mining. The Mining Act 1989 distinguishes between different categories of mining operations

but does not specifically define "artisanal" mining as a distinct category. This lack of a specific legal definition for artisanal mining can create ambiguity and may hinder the development of targeted policies and support mechanisms for this sub-sector.

Sources

National Mineral Sector Policy Framework and Actions, 2019-2029. Ministry of Natural Resources, Guyana. Available at: <https://nre.gov.gy/wp-content/uploads/2018/10/National-Mineral-Sector-Policy-Framework-and-Actions-2019-2029.pdf>

Mining Act 1989 (Act No. 20 of 1989). Available at:

https://www.parliament.gov.gy/new2/documents/acts/8532-act_20_of_1989_mining.pdf

Secondary Sources:

PlanetGOLD Technical Report On the Artisanal and Small-Scale Gold Mining in Guyana.

Available at:

<https://www.planetgold.org/sites/default/files/planetGOLD%20-%20GUY%20Technical%20Report%20-%20FINAL.pdf>

Does the legal framework set distinct conditions or restrictions for mining activities in Indigenous territories, protected areas, mining exclusion zones and community lands, including provisions related to consent, well-informed prior consultation, or land tenure?

0.5

Criterion 3

Justification

Guyana's legal framework provides some protections and specific conditions for mining in Indigenous territories, but these are not without significant limitations. The Amerindian Act 2006 requires that miners obtain the consent of at least two-thirds of the Village Council to operate on Village lands, which aligns with the principle of Free, Prior, and Informed Consent (FPIC). However, Section 50 of the same Act allows the government to override this requirement for large-scale mining projects if they are deemed to be in the "public interest," which represents a significant loophole that weakens Indigenous rights protections. The Mining Act also contains provisions related to Amerindian lands, but it is the Amerindian Act that provides the more detailed framework for consultation and consent. The existence of the "public interest" clause significantly undermines the overall protection afforded to Indigenous communities.

Sources

Amerindian Act 2006 (Cap 29:01). Ministry of Amerindian Affairs, Guyana. Available at:

<https://moaa.gov.gy/wp-content/uploads/2015/02/AMERINDIAN-ACT-2006.pdf>

Mining Act 1989 (Act No. 20 of 1989). Available at: https://www.parliament.gov.gy/new2/documents/acts/8532-act_20_of_1989_mining.pdf

Secondary Sources:

Vaughan, A. (2023). "What Gold Mining in Guyana Means for Indigenous Peoples." ScholarWorks, University of Arkansas. Available at: <https://scholarworks.uark.edu/cgi/viewcontent.cgi?article=1012&context=ingsuht>

B. Ownership and Allocation of Mineral Rights

Score: 0.63 / 1.00

Does the law allocate ownership rights over minerals, including gold?

1.0

Criterion 4

Justification

The legal framework in Guyana is unequivocal regarding the ownership of mineral resources. The Mining Act 1989, in Section 6, explicitly states that all minerals, including gold, are vested in the State. This principle establishes clear state ownership over all mineral resources within Guyana's territory. While the State retains ownership, it grants licenses and permits for the exploration and extraction of these resources through the Guyana Geology and Mines

Commission, creating a clear and well-defined system for mineral allocation that is consistent with international practice.

Sources

Mining Act 1989 (Act No. 20 of 1989), Section 6. Available at:

https://www.parliament.gov.gy/new2/documents/acts/8532-act_20_of_1989_mining.pdf

Secondary Sources:

Dentons Global Mining Guide: Guyana (January 17, 2022). Available at: <https://www.dentons.com/en/insights/newsletters/2022/january/17/dentons-global-mining-guide/dentons-global-mining-guide-2022/guyana>

Are there transparent and publicly accessible registries of mining titles, licenses, or concessions for ASM (mining cadastres)?

0.0

Criterion 5

Justification

Guyana currently lacks a transparent and publicly accessible registry of mining titles, licenses, or concessions specifically for Artisanal and Small-Scale Mining (ASM). While the Guyana Geology and Mines Commission provides an interactive map for medium and large-scale mineral tenures through the GGMC Mineral Tenure StoryMap, it explicitly states that small-scale mining tenure data is not publicly available. The Extractive Industries Transparency Initiative (EITI) has noted the absence of a publicly available cadastre system for mining in Guyana, particularly for small-scale operations. This lack of transparency for ASM represents a significant governance gap that hinders accountability and public oversight of the sector.

Sources

Primary Sources:

GGMC Mineral Tenure StoryMap. Guyana Geology and Mines Commission. Available at:

<https://storymaps.arcgis.com/stories/790ce0003be5464a815be1862ff594d9>

Secondary Sources:

Extractive Industries Transparency Initiative (EITI) Guyana. Available at: <https://eiti.org/countries/guyana>

Is there an official and up-to-date mining registry that includes information allowing authorities to prevent overlapping concessions with existing rights, such as other titles, protected areas, or indigenous lands?

0.5

Criterion 6

Justification

Guyana has an official and up-to-date mining registry through the GGMC Mineral Tenure StoryMap, which is publicly accessible and provides comprehensive information on mineral tenures, protected areas, and Amerindian titled lands. The Mining Act 1989, specifically Section 26, prohibits the granting of overlapping licenses for the same mineral, providing a legal framework to prevent conflicts. The GGMC StoryMap integrates different land use data and indicates that a 1km buffer zone is maintained around Amerindian Titled Lands and Protected Areas to prevent encroachment. This system effectively integrates spatial data to prevent overlapping concessions and represents a positive feature of Guyana's mining governance framework.

Sources

Primary Sources:

GGMC Mineral Tenure StoryMap. Guyana Geology and Mines Commission. Available at:

<https://storymaps.arcgis.com/stories/790ce0003be5464a815be1862ff594d9>

Mining Act 1989 (Act No. 20 of 1989), Section 26. Available at:

https://www.parliament.gov.gy/new2/documents/acts/8532-act_20_of_1989_mining.p

Is there a formalization process in place for ASM workers operating without a formal permit, license and/or concession?

1.0

Criterion 7

Justification

Guyana has established a formalization process for ASM workers, but it faces implementation challenges and is not fully comprehensive. The National Mineral Sector Policy Framework and Actions, 2019-2029 recognizes the need for a national policy on artisanal mining and a plan for regularization. The government has promoted the formation of syndicates to help informal miners gain legal access to mining grounds, and the GGMC provides guidance on the licensing process. However, the policy framework also acknowledges the challenges that small-scale miners face in terms of compliance, suggesting that the formalization process is not as effective as it could be. The lack of a clear, step-by-step process specifically designed for individual informal miners to transition to formal operations represents a notable gap in the current system.

Sources

Primary Sources:

National Mineral Sector Policy Framework and Actions, 2019-2029. Ministry of Natural Resources, Guyana. Available at:

<https://nre.gov.gy/wp-content/uploads/2018/10/National-Mineral-Sector-Policy-Framework-and-Actions-2019-2029.pdf>

Guyana Geology and Mines Commission (GGMC) website. Available at: <https://www.ggmc.gov.gy/>

Secondary Sources:

PlanetGOLD Technical Report On the Artisanal and Small-Scale Gold Mining in Guyana. Available at:

<https://www.planetgold.org/sites/default/files/planetGOLD%20-%20GUY%20Technical%20Report%20-%20FINAL.pdf>

C. Procedures for Acquiring Mining Licenses

Score: 1.00 / 1.00

Are there clear procedures for acquiring rights on ASM for gold?

1.0

Criterion 8

Justification

Guyana has established a legal framework for acquiring mining rights for ASM through the Mining Act 1989 and regulations administered by the GGMC, but the procedures are not as clear and accessible as they could be. The Mining Act provides the general framework for obtaining licenses and permits, and the GGMC website contains information about licensing procedures. However, the detailed regulations and step-by-step procedures that would provide full clarity on the acquisition process for ASM gold rights are not always easily accessible to potential applicants. The lack of a clear definition of "artisanal mining" in the legal framework, as noted in Criterion 2, also creates some ambiguity in the application process. While the basic legal structure exists, the practical accessibility and clarity of procedures for ASM operators could be significantly improved.

Sources

Primary Sources:

Mining Act 1989 (Act No. 20 of 1989). Available at:

https://www.parliament.gov.gy/new2/documents/acts/8532-act_20_of_1989_mining.pdf Guyana Geology and Mines Commission (GGMC) website. Available at: <https://www.ggmc.gov.gy/>

Secondary Sources:

PlanetGOLD Technical Report On the Artisanal and Small-Scale Gold Mining in Guyana. Available at:

<https://www.planetgold.org/sites/default/files/planetGOLD%20-%20GUY%20Technical%20Report%20-%20FINAL.pdf>

Is there a legal framework that requires the buyer of gold to verify its legal origin?

1.0

Criterion 9

Justification

There is a strict legal framework in Guyana that requires the verification of the legal origin of gold. The sale and purchase of gold are heavily regulated under the Guyana Gold Board Act, Chapter 66:01 and the Mining Act of 1989. These regulations ensure that all gold mined in Guyana is sold only through authorized, licensed, and traceable channels, requiring sellers to prove they have produced the gold legally.

Sources

<https://omaigoldmines.com/guyana-1/mining-act-1/#:~:text=The%20Guyana%20Mining%20Act%20of,all%20mineral%20title%20in%20Guyana.>

Are specific environmental licensing procedures established for ASM, including simplified or tailored requirements?

1.0

Criterion 10

Justification

Guyana has established environmental guidelines and procedures that apply to ASM, but these are not always integrated into a simplified or specifically tailored licensing procedure for small-scale operations. Small-scale mining operations are typically exempt from the full Environmental Impact Assessment (EIA) process required for larger operations, which can be considered a tailored requirement. The Guidelines for Environmental Mining Regulations (2004) provide detailed environmental management practices for all scales of mining, with some sections specifically addressing small-scale mines. However, the process for obtaining an environmental permit from the Environmental Protection Agency can still be complex for small-scale miners, and the integration between mining licenses and environmental permits could be better streamlined.

Sources

Primary Sources:

- *Guidelines for Environmental Mining Regulations (2004). Guyana Geology and Mines Commission. Available at:*

https://www.ggmc.gov.gy/ggmc_web/wp-content/uploads/2024/10/Guidelines_Environmental_Mining_06012004.pdf

- *Environmental Protection Act 1996 (Act No. 11 of 1996). Available at:*

<https://www.epaguyana.org/epa/forms-and-booklets/category/2-acts>

Secondary Sources:

- *The Guyana Perspective: Environmental Impact Assessment (EIA) for ASM -LSM (2018). IGF Mining. Available at:*

<https://www.igfmining.org/wp-content/uploads/2018/09/Session-12-The-Guyana-Perspective-IGF-EIA-ASM-LSM.pdf>

[https://ggb.gov.gy/#:~:text=The%20Guyana%20Gold%20Board%20\(GGB,the%20business%20of%20gold%20trading](https://ggb.gov.gy/#:~:text=The%20Guyana%20Gold%20Board%20(GGB,the%20business%20of%20gold%20trading)

Is there a national, regional, or state government entity that oversees compliance with the implementation of artisanal and small-scale mining (ASM) operations' commitments in accordance with mining environmental licenses?

1.0

Criterion 11

Justification

There are national, state-level (regional/agency) government entities in Guyana that oversee compliance with the environmental license commitments of artisanal and small-scale mining (ASM) operations. The primary regulator is the

Guyana Geology and Mines Commission (GGMC), which works in conjunction with the Environmental Protection Agency (EPA) Guyana.

Sources

<https://eiti.org/countries/guyana#:~:text=The%20sector%20is%20mainly%20regulated,procedures%20for%20granting%20mineral%20agreements.>

Are mining concessions or licenses granted for a fixed period with mandatory reassessment before extension? *0.5 may be given in cases where the reassessment is mandatory, even when there is no fixed period for the mining concession

1.0

Criterion 12

Justification

Mining concessions and licenses in Guyana are granted for fixed periods, ranging from one year for small-scale claims to five years for medium-scale mining permits. While renewals are common, they are not automatic; they require compliance with regulations, such as environmental, technical, and financial reporting, which effectively acts as a mandatory review before renewal.

Sources

Application for Prospecting License-GGMC

[https://www.ggmc.gov.gy/ggmc service/application-for-prospecting-license/#:~:text=Overview,authorization%20to%20commence%20prospecting%20operations.](https://www.ggmc.gov.gy/ggmc%20service/application-for-prospecting-license/#:~:text=Overview,authorization%20to%20commence%20prospecting%20operations.)

D. Machinery Regulation

Score: 0.25 / 1.00

Is the use of machinery in ASM subject to regulation and licensing?

0.0

Criterion 13

Justification

The Mining Act 1989 provides a general framework for the regulation of mining activities, which would include the use of machinery, but it does not contain specific provisions for the licensing of machinery in ASM operations. While the GGMC has the authority to regulate mining operations and can impose conditions on the use of equipment, there is no dedicated licensing system specifically for machinery used in ASM. The regulatory framework focuses more on the mining operations themselves rather than on the specific equipment used. This represents a gap in the regulatory framework that could be strengthened to provide better oversight of machinery use in the ASM sector.

Sources

Primary Sources:

Mining Act 1989 (Act No. 20 of 1989). Available at:

https://www.parliament.gov.gy/new2/documents/acts/8532-act_20_of_1989_mining.pdf

Guyana Geology and Mines Commission (GGMC) website. Available at:

<https://www.ggmc.gov.gy/>

Are environmental impact assessments (EIAs) required for mechanized ASM operations?

1.0

Criterion 14

Justification

As noted in previous criteria, small-scale mining operations, including mechanized ASM, are typically exempt from the full Environmental Impact Assessment process that is required for larger operations. However, the Guidelines for Environmental Mining Regulations do provide specific environmental management practices for mechanized operations, and the Environmental Protection Agency retains the discretion to require an EIA if the operation is deemed to have significant environmental impacts. This suggests that while a full EIA may not be automatically required for all mechanized ASM operations, there is some level of environmental oversight. The lack of clear thresholds for when an EIA is required for mechanized ASM represents a weakness in the current framework.

Sources

Primary Sources:

Environmental Protection Act 1996 (Act No. 11 of 1996). Available at:

<https://www.epaguyana.org/epa/forms-and-booklets/category/2-acts> Guidelines for Environmental Mining Regulations (2004). Guyana Geology and Mines Commission. Available at:

https://www.ggmc.gov.gy/ggmc_web/wp-content/uploads/2024/10/Guidelines_Environmental_Mining_06012004.pdf

Are there governmental controls on the import, sale, or leasing of mining machinery?

0.5

Criterion 15

Justification

Guyana has general import and trade regulations administered by the Guyana Revenue Authority that would apply to mining machinery, including customs duties and import licensing requirements for certain categories of equipment. However, there is no evidence of specific controls tailored to the import, sale, or leasing of machinery specifically for the mining sector. The lack of sector-specific regulation makes it difficult to track the flow of mining machinery into the country and to ensure that it is being used in compliance with environmental and safety standards. This represents a gap in the regulatory framework that could be addressed to improve oversight of the mining sector.

Sources

Primary Sources:

Guyana Revenue Authority website. Available at: <https://www.gra.gov.gy/> Customs Act (Cap 82:01). Available at: <https://www.gra.gov.gy/>

Secondary Sources:

Import/Export procedures and requirements. Guyana Revenue Authority. Available at: <https://www.gra.gov.gy/>

Is there a national or subnational registry for heavy machinery used in mining?

0.0

Criterion 16

Justification

There is no evidence of a national or subnational registry specifically for heavy machinery used in mining operations in Guyana. While the Guyana Revenue Authority maintains records of imported equipment for customs purposes, and the Transport and Harbours Department maintains vehicle registrations, there is no dedicated registry that tracks heavy machinery specifically used in mining operations. The absence of such a registry makes it difficult to monitor the use of machinery in the mining sector, track equipment movement, and hold operators accountable for their environmental and social performance.

Sources

Primary Sources:

Guyana Revenue Authority website. Available at: <https://www.gra.gov.gy/> Transport and Harbours Department website. Available at: <https://www.thd.gov.gy/>

Are there transparent and publicly accessible registries or databases of licenses or permits granted for the use of machinery in ASM operations?

0.0

Criterion 17

Justification

There are no transparent and publicly accessible registries or databases of licenses or permits specifically granted for the use of machinery in ASM operations in Guyana. As established in Criterion 15, there is no specific licensing system for machinery used in ASM operations, and therefore no corresponding public registry exists. This lack of transparency represents a significant governance gap, as it makes it difficult for stakeholders to track the use of machinery in the sector, monitor compliance with regulations, and hold operators accountable for their operations.

Sources

Primary Sources:

Guyana Geology and Mines Commission (GGMC) website. Available at: <https://www.ggmc.gov.gy/>

Are operators required to equip heavy machinery with GPS or other tracking devices for monitoring purposes?

0.0

Criterion 18

Justification

There is no evidence that operators are required to equip heavy machinery with GPS or other tracking devices for monitoring purposes in Guyana's mining sector. While some operators may voluntarily use such technology for their own operational purposes, there is no regulatory requirement mandating the use of tracking devices on mining machinery. The lack of such a requirement makes it difficult to monitor the movement of machinery, prevent unauthorized use, and track mining activities in real-time, which could be valuable tools for combating illegal mining and ensuring compliance with mining regulations.

Sources

Primary Sources:

Mining Act 1989 (Act No. 20 of 1989). Available at:

https://www.parliament.gov.gy/new2/documents/acts/8532-act_20_of_1989_mining.pdf

Guyana Geology and Mines Commission (GGMC) website. Available at:

<https://www.ggmc.gov.gy/>

E. Mercury Regulation

Score: 0.88 / 1.00

Is mercury import, sale, and use regulated under national law?

1.0

Criterion 19

Justification

Guyana has established a comprehensive legal framework for the regulation of mercury through the Mercury Act 2020. This Act specifically regulates the import, sale, and use of mercury, and includes provisions for licensing and restrictions on the use of mercury in various activities. The Act represents a significant step forward in Guyana's efforts to control mercury use and protect human health and the environment. The legislation provides clear regulatory authority and establishes penalties for violations, creating a robust framework for mercury control that aligns with international best practices and the country's obligations under the Minamata Convention. Also the NAP mentions that various institutions have signed a MOU to coordinate and enhance the procedures for management of the importation, storage, distribution, use and provisions for clean-up. Under this agreement the import of mercury is permitted to 1000

flasks of 34,500 kg per year.

Sources

Primary Sources:

- Mercury Act 2020. Available at:

https://www.mercuryconvention.org/sites/default/files/documents/legal_instrument/Guyana_Mercury_Act_2020.pdf

https://minamataconvention.org/sites/default/files/documents/national_action_plan/Guyana-ASGM-NAP-2021-EN.pdf

<https://newssourcegy.com/politics/guyana-reduces-importation-of-mercury-for-mining-purposes-ggmc-official/>

Are there specific restrictions or bans on mercury use in ASM?

1.0

Criterion 20

Justification

The Mercury Act 2020 specifically prohibits the use of mercury in artisanal and small-scale gold mining operations in open systems where mercury can be discharged into the environment. Also, there are certain restrictions for burning amalgam. This is a critical measure for reducing the environmental and health impacts of ASM in Guyana and demonstrates the government's commitment to eliminating mercury use in the sector. The prohibition is comprehensive and aligns with Guyana's obligations under the Minamata Convention on Mercury. The challenge moving forward will be the effective enforcement of this ban, but the legal framework provides a strong foundation for mercury elimination in the ASM sector.

Sources

Primary Sources:

- Mercury Act 2020. Available at:

https://www.mercuryconvention.org/sites/default/files/documents/legal_instrument/Guyana_Mercury_Act_2020.pdf

https://minamataconvention.org/sites/default/files/documents/national_action_plan/Guyana-ASGM-NAP-2021-EN.pdf

<https://newssourcegy.com/politics/guyana-reduces-importation-of-mercury-for-mining-purposes-ggmc-official/>

Is there a system for tracking the origin, distribution, and final use of mercury?

0.5

Criterion 21

Justification

Yes, Guyana has a mercury tracking system, but it is a regulatory and administrative tracking framework rather than a single digital end-to-end tracking platform. The Mercury Act 2020 requires licensing and record-keeping for the import, sale, and use of mercury, which provides a legal basis for tracking its flow through the supply chain. The Act mandates that persons engaged in mercury-related activities maintain records and submit reports to the relevant authorities. Mercury importation is capped annually and importers, sellers, and distributors must obtain an Environmental Authorization from the Environmental Protection Agency (EPA). However, the Act does not establish a comprehensive digital tracking system that would provide real-time monitoring and complete traceability of mercury from import to final use. While the legal framework for tracking exists, the implementation of a robust, technology-enabled tracking system would strengthen the effectiveness of mercury control measures.

Sources

Primary Sources:

- Mercury Act 2020. Available at:

https://www.mercuryconvention.org/sites/default/files/documents/legal_instrument/Guyana_Mercury_Act_2020.pdf

<https://newssourcegy.com/politics/guyana-reduces-importation-of-mercury-for-mining-purposes-ggmc-official/>

Are there procedures in place for the seizure, transport, and final disposal of confiscated mercury, especially following operations against illegal gold mining?

1.0

Criterion 22

Justification

The Mercury Act 2020 provides authorities with the power to seize and confiscate mercury that is being used illegally, establishing the legal basis for enforcement actions. Mercury is treated as a controlled toxic substance in Guyana. During operations against illegal mining, mercury may be lawfully seized by the Guyana Geology and Mines Commission (GGMC), Environmental Protection Agency (EPA), Guyana Revenue Authority / Customs, Law enforcement agencies supporting mining enforcement. Officials have publicly confirmed that mercury found during operations is confiscated as part of enforcement actions. Confiscated mercury is treated as hazardous material and the transport is handled by or under supervision of the EPA, GGMC and the Pesticides and Toxic Chemicals Control Board (PTCCB) which requires controlled handling and documentation, similar to other hazardous chemicals. However, the development of comprehensive procedures for mercury disposal, including the establishment of appropriate facilities and protocols, is not yet in place.

Sources

Primary Sources:

- Mercury Act 2020. Available at:

https://www.mercuryconvention.org/sites/default/files/documents/legal_instrument/Guyana_Mercury_Act_2020.pdf

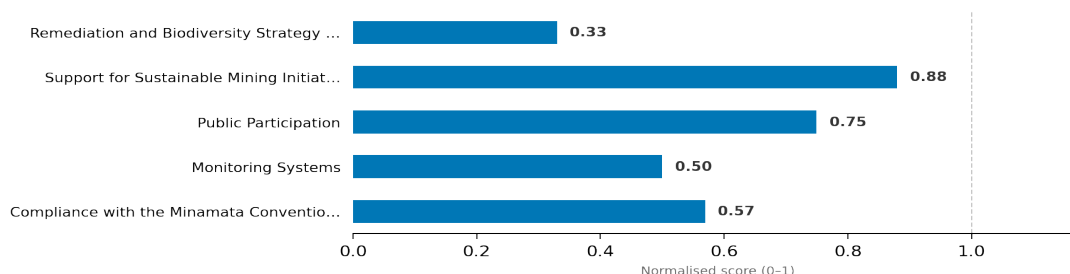
<https://newssourcegy.com/politics/guyana-reduces-importation-of-mercury-for-mining-purposes-ggmc-official/>

<https://ptccb.org.gy/wp-content/uploads/2025/07/PTCCB-Prohibited-Pesticides-and-Toxic-Chemicals.pdf>

II. Mining policies

3.03 / 5.00

Category scores



F. Compliance with the Minamata Convention on Mercury

Score: 0.57 / 1.00

Is the country a signatory or Party to the Minamata Convention on Mercury?

1.0

Criterion 23

Justification

Guyana is both a signatory and Party to the Minamata Convention on Mercury. The country signed the Convention on October 10, 2013, demonstrating its early commitment to addressing the global issue of mercury pollution. This early signature shows Guyana's recognition of the importance of international cooperation in addressing mercury-related environmental and health challenges.

Sources

Primary Sources:

- Minamata Convention on Mercury. United Nations Treaty Collection. Available at:
https://treaties.un.org/Pages/ViewDetails.aspx?src=TREATY&mtdsg_no=XXVII17&chapter=27&clang=_en

Has the country ratified the Minamata Convention?

1.0

Criterion 24

Justification

Guyana ratified the Minamata Convention on September 29, 2021, making it a full Party to the Convention. This ratification legally binds Guyana to the Convention's provisions and obligations, including the development of a National Action Plan for artisanal and small-scale gold mining and the implementation of measures to reduce mercury use in the sector. The ratification demonstrates Guyana's commitment to implementing international standards for mercury control.

Sources

Primary Sources:

- Minamata Convention on Mercury. United Nations Treaty Collection. Available at:
https://treaties.un.org/Pages/ViewDetails.aspx?src=TREATY&mtdsg_no=XXVII-17&chapter=27&clang=_en

Has the country submitted an initial assessment report as part of its participation in the Convention?

1.0

Criterion 25

Justification

As a Party to the Convention since 2021, Guyana is required to submit various reports as part of its obligations under the Convention. While Guyana completed a Minamata Initial Assessment in 2016 prior to ratification, the specific status of formal reporting requirements following ratification is not clearly documented in publicly available sources. The lack of readily accessible information about the submission of required reports represents a transparency concern, even if the reports may have been submitted.

Sources

Primary Sources:

- *Minamata Convention on Mercury. United Nations Treaty Collection. Available at:*
https://treaties.un.org/Pages/ViewDetails.aspx?src=TREATY&mtdsg_no=XXVII-17&chapter=27&clang=_en

Secondary Sources:

- *Minamata Initial Assessment Report Guyana (2016). Available at:*
https://minamataconvention.org/sites/default/files/documents/minamata_initial_assessment/Guyana-MIA-2016.pdf

Has the country developed and submitted a National Action Plan (NAP) on mercury in accordance with the Convention?

1.0

Criterion 26

Justification

Guyana has developed a National Action Plan for Artisanal and Small-Scale Gold Mining, as required by the Minamata Convention. The NAP was completed in 2021 and addresses mercury reduction strategies in the ASGM sector. However, the full submission status to the Convention Secretariat and the public availability of the complete final version are not entirely clear from publicly accessible sources. While the development of the NAP represents significant progress, greater transparency regarding its submission and implementation status would strengthen compliance with Convention requirements.

Sources

Primary Sources:

- *Guyana National Action Plan for Artisanal and Small-Scale Gold Mining (NAP-ASGM) (2021). Available at:*
https://minamataconvention.org/sites/default/files/documents/national_action_plan/Guyana-ASGM-NAP-2021-EN.pdf

Does the NAP explicitly mention forests or forest ecosystems in the context of mercury reduction strategies?

1.0

Criterion 27

Justification

Yes, the NAP slightly addresses forests and forest ecosystems in the context of mercury reduction strategies. Given that a significant portion of Guyana's ASM activities take place in forested areas, and considering the country's extensive forest cover. The NAP refers to previous national assessment that concluded that goldmining was the principal driver of deforestation and forest degradation in Guyana.

Sources

Primary Sources:

- Guyana National Action Plan for Artisanal and Small-Scale Gold Mining (NAP-ASGM) (2021). Available at:
https://minamataconvention.org/sites/default/files/documents/national_action_plan/Guyana-ASGM-NAP-2021-EN.pdf

Does the NAP specifically refer to the Amazon region in its analysis, objectives, or proposed actions?

0.0

Criterion 28

Justification

Although, Guyana is an Amazonian country, and its ASM sector is concentrated in the Amazon region of the country. The NAP does not specifically mention the Amazon region in its analysis, objectives, and proposed actions.

Sources

Primary Sources:

- Guyana National Action Plan for Artisanal and Small-Scale Gold Mining (NAP-ASGM) (2021). Available at:
https://minamataconvention.org/sites/default/files/documents/national_action_plan/Guyana-ASGM-NAP-2021-EN.pdf

Does the NAP take into account intersectional approaches?

1.0

Criterion 29

Justification

The National Action Plan incorporates intersectional approaches that consider the social, economic, environmental, and health dimensions of mercury use. Also, it mentions the specific impacts on vulnerable populations such as women, children, and Indigenous communities. The NAP includes intersectional considerations, particularly mentioning that Mercury reduction in ASGM will not be effective unless social conditions—health, livelihoods, gender inequality, child protection, and community well-being—are addressed at the same time.

Sources

Primary Sources:

- Guyana National Action Plan for Artisanal and Small-Scale Gold Mining (NAP-ASGM) (2021). Available at:
https://minamataconvention.org/sites/default/files/documents/national_action_plan/Guyana-ASGM-NAP-2021-EN.pdf

G. Monitoring Systems

Score: 0.50 / 1.00

Are there government-led monitoring systems for environmental and social impacts of ASM?

0.5

Criterion 30

Justification

Guyana has established government institutions responsible for monitoring environmental and social impacts of ASM, but the systems face significant limitations. The Environmental Protection Agency (EPA) is mandated to monitor environmental impacts of all development activities, including mining, through the Environmental Protection Act. The

Guyana Geology and Mines Commission (GGMC) also has regulatory oversight responsibilities for mining operations. However, the effectiveness of these monitoring systems for ASM is constrained by limited resources, the remote and dispersed nature of many ASM operations, and challenges in accessing mining sites. The National Mineral Sector Policy Framework acknowledges the need to strengthen monitoring and enforcement capabilities, indicating that current systems are not fully adequate.

Sources

Primary Sources:

- *Environmental Protection Act, Chapter 20:05, Laws of Guyana*. Available at: https://www.ggmc.gov.gy/ggmc_web/wp-content/uploads/2024/09/environmental_protection_act_cap2005_1998.pdf
- *National Mineral Sector Policy Framework and Actions, 2019-2029*. Ministry of Natural Resources. Available at: <https://nre.gov.gy/wp-content/uploads/2018/10/National-Mineral-Sector-Policy-Framework-and-Actions-2019-2029.pdf>
- *Environmental Protection Agency (EPA) Guyana website*. Available at: <https://epaguyana.org/>

Secondary Sources:

- *The Guyana Perspective: Environmental Impact Assessment (EIA) for ASM -LSM (2018)*. IGF Mining. Available at: <https://www.igfmining.org/wp-content/uploads/2018/09/Session-12-The-Guyana-Perspective-IGF-EIA-ASM-LSM.pdf>
- <https://www.ggmc.gov.gy/mineral-mapping-project/>

Is satellite or geospatial monitoring used to detect illegal or unlicensed ASM activities?

1.0

Criterion 31

Justification

Guyana actively utilizes satellite and geospatial monitoring to detect illegal and unlicensed ASM activities. The GGMC uses satellite imagery to monitor mining activities and identify areas of deforestation and land degradation associated with mining operations. This monitoring is conducted on a regular basis and the information is used to target enforcement actions and track the expansion of mining activities over time. The GGMC Mineral Tenure StoryMap provides publicly accessible geospatial information on mineral tenures, protected areas, and Amerindian titled lands, demonstrating the government's use of geospatial technology for monitoring purposes. The use of satellite monitoring has been a key component of Guyana's efforts to combat illegal mining and enforce mining regulations.

Sources

Primary Sources:

- *GGMC Mineral Tenure StoryMap*. Guyana Geology and Mines Commission. Available at: <https://storymaps.arcgis.com/stories/790ce0003be5464a815be1862ff594d9>
- *Guyana Geology and Mines Commission (GGMC) website*. Available at: <https://www.ggmc.gov.gy/>

Secondary Sources:

- *Stabroek News article on technology for tracking gold exports (June 20, 2024)*. Available at: <https://www.stabroeknews.com/2024/06/20/opinion/letters/technology-adds-layers-of-security-and-traceability-verifying-golds-origins-at-any-point-in-its-lifecycle/>
- <https://guyanacurrentaffairs.com/news/government-news/guyana-joins-global-community-for-gis-day-announces-new-geoportal/>
- <https://www.ggmc.gov.gy/mineral-mapping-project/>

Can governmental satellite monitoring systems distinguish between artisanal, semi-mechanized, and mechanized mining activities?

0.0

Criterion 32

Justification

While Guyana's satellite monitoring systems can detect the presence of mining activities and associated deforestation, they are not currently able to distinguish between artisanal, semi-mechanized, and mechanized mining operations. This represents a technical limitation in the current monitoring capabilities. The GGMC's satellite monitoring can identify mining-related land disturbances and track changes over time, but the resolution and analytical capabilities do not extend to differentiating between different scales or types of mining operations based on their operational characteristics or equipment signatures.

Sources

Primary Sources:

- GGMC Mineral Tenure StoryMap. Guyana Geology and Mines Commission. Available at: <https://storymaps.arcgis.com/stories/790ce0003be5464a815be1862ff594d9>
- Guyana Geology and Mines Commission (GGMC) website. Available at: <https://www.ggmc.gov.gy/>
<https://www.ggmc.gov.gy/mineral-mapping-project/>

Is mercury concentration measured by the government in potentially affected water bodies, the food chain and/or populations?

0.5

Criterion 33

Justification

The Government of Guyana conducts regular monitoring of mercury concentrations in water bodies, fish, and human populations in areas affected by gold mining. The Environmental Protection Agency and other government agencies are responsible for this monitoring as part of the country's efforts to assess health and environmental risks associated with mercury use in ASM. The Guyana National Action Plan for Artisanal and Small-Scale Gold Mining specifically addresses mercury monitoring and includes strategies for measuring mercury concentrations in various environmental and biological matrices. This monitoring data is used to inform public health advisories and guide interventions aimed at reducing mercury exposure in affected communities. However, the NAP does mention that there has been limited systematic monitoring of mercury concentrations and this needs to be strengthened.

Sources

Primary Sources:

- Guyana National Action Plan for Artisanal and Small-Scale Gold Mining (NAP-ASGM) (2021). Available at: https://minamataconvention.org/sites/default/files/documents/national_action_plan/Guyana-ASGM-NAP-2021-EN.pdf
- Environmental Protection Agency (EPA) Guyana website. Available at: <https://epaguyana.org/>

Secondary Sources:

- Minamata Initial Assessment Report Guyana (2016). Available at: https://minamataconvention.org/sites/default/files/documents/minamata_initial_assessment/Guyana-MIA-2016.pdf
- Small-scale gold mining related mercury contamination in the Guianas: a review. WWF-LAC. Available at: https://www.flac.awsassets.panda.org/downloads/mercury_contamination_in_the_guianas_2015.pdf
https://www.researchgate.net/publication/341137127_Survey_of_Methylmercury_Exposures_and_Risk_Factors_Among_Indigenous_Communities_in_Guyana_South_America

Are there legal channels for civil society oversight or participation in monitoring and enforcement?

1.0

Criterion 34

Justification

Guyana has established clear legal channels for civil society oversight and participation in monitoring and enforcement through its participation in the Extractive Industries Transparency Initiative (EITI). The EITI Standard 2023 explicitly mandates that civil society must be "fully, actively and effectively engaged in the EITI process" and requires governments to ensure an "enabling environment for civil society participation" through relevant laws, regulations, and administrative rules. The EITI Guyana Multi-Stakeholder Group (MSG) is a tripartite governing body comprising members from Government, Industry, and Civil Society, with 12 members representing these three sectors. Also, the Environmental Protection Agency (EPA) of Guyana, has official channels for participation and information sharing such as in the process of Environmental Impact assessments or other public notices regarding environmental issues. This process is open to individuals, communities, and civil society organizations.

Sources

Primary Sources:

- EITI Standard 2023. Available at:

<https://eiti.org/sites/default/files/2023-06/2023%20EITI%20Standard.pdf>

- EITI Guyana website, "Multi-Stakeholder Group" page. Available at:

<https://eiti.gy/multi-stakeholder-group/>

Secondary Sources:

- Mongabay article: "The water is brown": Community in Guyana rings the alarm over unsustainable mining near river." Available at:

<https://news.mongabay.com/2022/08/the-water-is-brown-community-in-guyana-rings-thealarm-over-unsustainable-mining-near-river/>

- Conservation International. "Stakeholder Engagement Plan." Available at:

https://www.conservation.org/docs/default-source/gef-documents/guyana-gold/9602-guyana-gold-stakeholder-engagement.pdf?sfvrsn=a3efd88a_2

<https://eservices.epa.gov.gy>

Is there an official, accessible, safe, and functional channel for individuals or communities to file complaints related to ASGM activities or associated environmental impacts?

1.0

Criterion 35

Justification

Guyana has established multiple official, accessible, safe, and functional channels for individuals and communities to file complaints related to ASGM activities and associated environmental impacts. The Environmental Protection Agency provides a comprehensive complaints management process that is accessible via phone hotlines (including a toll-free environmental emergency hotline), email, physical visits to offices, and social media. The EPA explicitly guarantees confidentiality for complainants, stating that "all information given by the complainant is confidential, hence, it would not be disclosed to anyone, especially the defaulter!" The process covers "every sector and scale, from manufacturing to mining," thereby including ASGM activities. Additionally, the PlanetGOLD Guyana project, in partnership with Conservation International, has implemented a specific Accountability and Grievance Mechanism tailored for the ASGM sector, which emphasizes safety and confidentiality and allows complainants to remain anonymous. Also, a formal complaint can be filed to the Environmental Protection Agency (EPA) of Guyana, and there

are official channels to do so. This process is open to individuals, communities, and civil society organizations.

Sources

Primary Sources:

- Environmental Protection Agency (EPA) Guyana - The Complaints Management process. Available at: <https://epaguyana.org/the-complaints-management-process/>
- Environmental Protection Agency (EPA) Guyana - Reporting Complaints about Pollution and Other Environmental Violations (PDF). Available at: <https://epaguyana.org/wp-content/uploads/2022/11/07.08-EPA-s-Complaints-Process.pdf>
- Environmental Protection Act, Cap 20:05, Laws of Guyana. Available at: https://www.ggmc.gov.gy/ggmc_web/wp-content/uploads/2024/09/environmental_protection_act_cap2005_1998.pdf

Secondary Sources:

- PlanetGOLD Guyana Accountability and Grievance Mechanism. Available at: https://www.planetgold.org/sites/default/files/2019-12/planetGOLD%20Guyana%20Accountability%20and%20Grievance%20Mechanism%20posters_web.pdf
- <https://eservices.epa.gov.gy/customer-complaint-form/new>

Are there processes for public consultation with affected communities in mining-related decisions?

1.0

Criterion 36

Justification

Guyana has established some processes for public consultation with affected communities in mining-related decisions, but these processes have significant limitations and are not consistently implemented. The Amerindian Act 2006 requires that miners obtain the consent of at least two-thirds of the Village Council to operate on Village lands, which aligns with the principle of Free, Prior, and Informed Consent. However, Section 50 of the same Act allows the government to override this requirement for large-scale mining projects if they are deemed to be in the "public interest," which represents a significant loophole. In addition, the Environmental Protection Act requires public consultation for certain environmental assessments. While formal consultation processes exist, they lack publicly available records and detailed documentation of the consultation process.

Sources

Primary Sources:

- Amerindian Act 2006 (Cap 29:01). Ministry of Amerindian Affairs, Guyana. Available at: <https://moaa.gov.gy/wp-content/uploads/2015/02/AMERINDIAN-ACT-2006.pdf>
- Environmental Protection Act, Chapter 20:05, Laws of Guyana. Available at: https://www.ggmc.gov.gy/ggmc_web/wp-content/uploads/2024/09/environmental_protection_act_cap2005_1998.pdf

Secondary Sources:

- Vaughan, A. (2023). "What Gold Mining in Guyana Means for Indigenous Peoples." ScholarWorks, University of Arkansas. Available at: <https://scholarworks.uark.edu/cgi/viewcontent.cgi?article=1012&context=ingsuht>

Are civil society complaints taken into account in the authorization or assessment processes of mining projects?

0.0

Criterion 37

Justification

While Guyana has established channels for civil society to voice their concerns regarding mining projects, there is no clear legal requirement mandating that their complaints be formally taken into account in the authorization or assessment processes. The influence of civil society complaints often depends on the political will of the government

and the level of public pressure that can be generated. The Environmental Protection Act provides for public participation in environmental assessments, and the EITI framework ensures civil society representation in extractive sector governance, but the extent to which civil society input directly influences specific project authorization decisions is not clearly defined in the legal framework. The effectiveness of civil society input varies depending on the specific project and the broader political context.

Sources

Primary Sources:

- *Environmental Protection Act, Chapter 20:05, Laws of Guyana. Available at:*
https://www.ggmc.gov.gy/ggmc_web/wp-content/uploads/2024/09/environmental_protection_act_cap2005_1998.pdf

- *EITI Standard 2023. Available at:*
<https://eiti.org/sites/default/files/2023-06/2023%20EITI%20Standard.pdf>

Secondary Sources:

- *EITI Guyana website. Available at:* <https://eiti.gy/>

Do national programs on ASM include specific measures to support the participation of women, Indigenous peoples, or traditional communities?

1.0

Criterion 38

Justification

Guyana's national programs on ASM include some measures to support the participation of women, Indigenous peoples, and traditional communities, but these measures are not comprehensive or specifically tailored to ASM initiatives. The National Gender Equality and Social Inclusion (GESI) Policy for Guyana outlines a strategic line for 'Inclusion in the Mining Industry' which includes promoting the 'inclusion of women in decision-making in the mining industry through training.' However, the policy does not explicitly mention sustainable ASM initiatives, nor does it specifically address the inclusion of Indigenous peoples within these initiatives. Also, the NAP mentions to achieve gender equality, opportunities and involvement of women in the ASGM sector should be improved. The Amerindian Act 2006 provides some protections for Indigenous communities in mining-related decisions, but these are not specifically focused on supporting their participation in ASM programs. While there is a general commitment to social inclusion, more specific and targeted measures are needed to ensure meaningful participation of these groups in the ASM sector.

Sources

Primary Sources:

- *National Gender Equality and Social Inclusion (GESI) Policy for Guyana. Available at:*
https://wrd.unwomen.org/sites/default/files/2021-12/GUYANA_NationalGenderEqualitySocialInclusionPolicy.pdf

- *Amerindian Act 2006 (Cap 29:01). Ministry of Amerindian Affairs, Guyana. Available at:*
<https://moaa.gov.gy/wp-content/uploads/2015/02/AMERINDIAN-ACT-2006.pdf>
https://minamataconvention.org/sites/default/files/documents/national_action_plan/Guyana-ASGM-NAP-2021-EN.pdf

Are there protocols for the care and protection of victims and witnesses of crimes related to or derived from illegal mining? *0.5 may be given in cases there are general protection of witnesses and victims programs, but not specific for illegal mining

0.5

Criterion 39

Justification

There are established protocols for the care and protection of victims and witnesses in Guyana that can be applied to crimes related to illegal mining, such as trafficking in persons, forced labor, or sexual exploitation. These protections are grounded in both general witness safety legislation and specialized trafficking laws.

Sources

<https://mhsss.gov.gy/wp-content/uploads/2023/08/The-Combating-of-Trafficking-in-Persons-Bill-2023.pdf>

I. Support for Sustainable Mining Initiatives

Score: 0.88 / 1.00

Are there public programs to support formalization through incentives to and capacity-building of ASM gold miners?

1.0

Criterion 40

Justification

Guyana has established comprehensive public programs to support the formalization of ASM gold miners through both incentives and capacity-building initiatives. The National Mineral Sector Policy Framework includes specific policies for optimizing the economic scope and technical capacity of small and medium-scale mining, which encompasses measures to support formalization. The government has actively promoted the formation of mining syndicates to help informal miners gain legal access to mining grounds. The Guyana National Action Plan for Artisanal and Small-Scale Gold Mining outlines strategies for formalization, regulation, and updating of legislation. Additionally, the government has collaborated with international organizations like the Artisanal Gold Council and Conservation International to provide capacity-building programs focusing on mercury-free processing, mine safety, business planning, and legal compliance.

Sources

Primary Sources:

- National Mineral Sector Policy Framework and Actions, 2019-2029. Ministry of Natural Resources. Available at:

<https://nre.gov.gy/wp-content/uploads/2018/10/National-Mineral-Sector-Policy-Framework-and-Actions-2019-2029.pdf>

- Guyana National Action Plan for Artisanal and Small-Scale Gold Mining (NAP-ASGM) (2021). Available at:

https://minamataconvention.org/sites/default/files/documents/national_action_plan/Guyana-ASGM-NAP-2021-EN.pdf

Secondary Sources:

- Artisanal Gold Council and the Ministry of Natural Resources collaboration. Available at:

<https://www.ggmc.gov.gy/artisanal-gold-council-and-the-ministry-of-natural-resources-collaborate-to-further-advance-the-reduction-of-mercury-use-in-the-small-and-medium-scale-mining-sector/>

- planetGOLD Guyana project. Available at: <https://www.planetgold.org/guyana>

Are there accessible financing mechanisms promoted by the State to support sustainable practices as an alternative to unsustainable ASM gold mining?

1.0

Criterion 41

Justification

While Guyana has some financing mechanisms available through the GuyanaGold Board, including "Access to Bank Loan Incentives," these are not specifically targeted at promoting sustainable practices as alternatives to unsustainable ASM gold mining. The financing mechanisms are general in nature and do not specifically incentivize the adoption of cleaner technologies or more responsible mining practices. The lack of accessible, targeted financing for sustainable ASM represents a significant barrier to the adoption of mercury-free technologies and environmentally responsible mining practices. While international projects like planetGOLD have worked to address this issue through specific funding mechanisms, a more systematic and state-led approach to financing sustainable ASM practices is

needed.

Sources

Primary Sources:

- Guyana Gold Board - Benefits. Available at: <https://ggb.gov.gy/benefits/>
- National Mineral Sector Policy Framework and Actions, 2019-2029. Ministry of Natural Resources. Available at: <https://nre.gov.gy/wp-content/uploads/2018/10/National-Mineral-Sector-Policy-Framework-and-Actions-2019-2029.pdf>

Secondary Sources:

- planetGOLD Guyana project. Available at: <https://www.planetgold.org/guyana>
- Toward the greening of the gold mining sector of Guyana: transition issues and challenges. Inter-American Development Bank. Available at: <https://publications.iadb.org/en/toward-greening-gold-mining-sector-guyana-transition-issues-and-challenges?eloutlink=imf2adb>

Are safer mercury-free technologies promoted through incentives or support programs?

1.0

Criterion 42

Justification

The promotion of safer mercury-free technologies is a key component of Guyana's efforts to comply with the Minamata Convention and represents one of the strongest areas of government support for sustainable ASM practices. The Guyana National Action Plan for Artisanal and Small-Scale Gold Mining includes comprehensive strategies for the reduction of mercury use and the promotion of mercury-free technologies. The government has collaborated extensively with international organizations, including the planetGOLD project, the Artisanal Gold Council, and Conservation International, to introduce and promote mercury-free processing technologies to miners. These initiatives have included the development of handbooks on mercury-free processing technology, workshops on low-impact exploration and mercury-free processing, and capacity-building programs. The Mercury Act 2020 specifically prohibits the use of mercury in artisanal and small-scale gold mining, creating a regulatory framework that necessitates the adoption of alternative technologies.

Sources

Primary Sources:

- Guyana National Action Plan for Artisanal and Small-Scale Gold Mining (NAP-ASGM) (2021). Available at: https://minamataconvention.org/sites/default/files/documents/national_action_plan/Guyana-ASGM-NAP-2021-EN.pdf
- Mercury Act 2020. Available at: https://www.mercuryconvention.org/sites/default/files/documents/legal_instrument/Guyana_Mercury_Act_2020.pdf

Secondary Sources:

- planetGOLD Guyana project. Available at: <https://www.planetgold.org/guyana>
- Artisanal Gold Council and the Ministry of Natural Resources collaboration. Available at: <https://www.ggmc.gov.gy/artisanal-gold-council-and-the-ministry-of-natural-resources-collaborate-to-further-advance-the-reduction-of-mercury-use-in-the-small-and-medium-scale-mining-sector/>
- Mercury-free gold mining technologies: possibilities for adoption in the Guianas. Available at: <https://www.sciencedirect.com/science/article/pii/S0959652605000764>

Are women, traditional communities and Indigenous peoples specifically included in sustainable ASM initiatives?

1.0

Criterion 43

Justification

While there are some efforts to include women and Indigenous peoples in sustainable ASM initiatives, these efforts are not comprehensive or systematically integrated across all programs. The National Gender Equality and Social Inclusion (GESI) Policy for Guyana outlines a strategic line for 'Inclusion in the Mining Industry' which includes promoting the 'inclusion of women in decision-making in the mining industry through training.' However, the policy does not explicitly mention sustainable ASM initiatives, nor does it specifically address the inclusion of Indigenous peoples within these initiatives. The NAP does mention the inclusion of women to achieve gender equality in the ASM sector. Some international projects, such as those implemented by the Artisanal Gold Council, have included agreements with the Guyana Women Miners Organization to involve women in mining and enhance their capacity in business planning and mercury-free processing. However, these initiatives are project-specific rather than part of a comprehensive national strategy for inclusion.

Sources

Primary Sources:

- National Gender Equality and Social Inclusion (GESI) Policy for Guyana. Available at: https://wrd.unwomen.org/sites/default/files/2021-12/GUYANA_NationalGenderEqualitySocialInclusionPolicy.pdf

Secondary Sources:

- Artisanal Gold Council - Guyana. Available at: <https://artisanalgold.org/guyana>
https://minamataconvention.org/sites/default/files/documents/national_action_plan/Guyana-ASGM-NAP-2021-EN.pdf

Are there governmental programs to collaborate with NGOs, academic institutions, or international agencies to promote sustainable ASM practices?

1.0

Criterion 44

Justification

Guyana demonstrates an excellent track record of governmental programs that collaborate with NGOs, academic institutions, and international agencies to promote sustainable ASM practices. The National Mineral Sector Policy Framework explicitly supports stakeholder participation and evidence-based decision-making, providing a foundation for collaborative approaches. The Environmental Protection Agency has partnered with the World Wildlife Fund Guianas with support from the Netherlands Commission on Environmental Assessment, leading to training workshops aimed at building capacity for Strategic Environmental Assessment in the ASGM sector. The Artisanal Gold Council has formed extensive partnerships with the Government of Guyana through the Ministry of Natural Resources and the GGMC, resulting in projects focused on building a legal, professional, and mercury-free ASGM sector. The government has also collaborated with Conservation International, the United Nations Environment Programme, and the Global Environment Facility on major initiatives like the planetGOLD project and the development of the National Action Plan for ASGM.

Sources

Primary Sources:

- National Mineral Sector Policy Framework and Actions, 2019-2029. Ministry of Natural Resources. Available at: <https://nre.gov.gy/wp-content/uploads/2018/10/National-Mineral-Sector-Policy-Framework-and-Actions-2019-2029.pdf>

- EPA partners with WWF to strengthen management of artisanal and small-scale gold mining (ASGM) industry in Guyana. Available at: <https://epaguyana.org/epa-partners-with-wwf-to-strengthen-management-of-artisanal-and-small-scale-gold-mining-asgm-industry-in-guyana/>

Secondary Sources:

- Artisanal Gold Council - Guyana. Available at: <https://artisanalgold.org/guyana>

- Code of Practice for Mine Reclamation and Closure Plans - GENCAPD project. Available at:

https://www.ggmc.gov.gy/document/code-of-practice-for-mine-reclamation-rev1-guyana_x0002_environmental-capacity-development-project-gencapd/

Are there clear protection mechanisms for individuals working in areas of mining?

0.0

Criterion 45

Justification

Guyana has a legal framework for worker protection through the Occupational Safety and Health (OSH) Act. However, reports from the Ministry of Labour indicate significant challenges in the practical implementation and enforcement of these mechanisms, particularly in the ASM sector, leading to high fatality rates and under-reporting of incidents. This suggests that while mechanisms exist on paper, their practical application is insufficient.

Sources

Primary Sources:

- Occupational Safety and Health Act, Chapter 99:06:

https://bwcimplementation.org/sites/default/files/resource/GY_Occupational_Safety_and_Health_Cap.%209906.pdf

Secondary Sources:

- "Safety and Health in the Mining Industry: The Perspective of the Ministry of Labour"

(Ministry of Labour, Guyana):

<https://labour.gov.gy/wp-content/uploads/2024/08/Safety-and-Health-in-the-Mining-Industry.2022-2-1.pdf>

Is there recognition or promotion of international certification schemes by the government?

1.0

Criterion 46

Justification

The government of Guyana heavily recognizes and promotes international certification schemes, particularly in sectors such as forestry, oil and gas, and manufacturing, to enhance international market access and competitiveness. The Guyana National Bureau of Standards (GNBS), a government agency under the Ministry of Tourism, Industry and Commerce, is the primary body that promotes international standards, including ISO certifications.

Sources

<https://dpi.gov.gy/tag/guyana-national-bureau-of-standards/page/3/#:~:text=Tag:%20Guyana%20National%20Bureau%20of%20Standards%20PPDI,'Safe%20To%20Work'%20certification%20for%20energy%20sector>

Is there a government incentive for the adoption of gold certification?

1.0

Criterion 47

Justification

The Government of Guyana, in partnership with international organizations, offers incentives for the adoption of specific, responsible, and mercury-free gold certification schemes in the Artisanal and Small-scale Mining (ASM) sector. These incentives are primarily designed to meet the nation's commitment to the Minamata Convention on Mercury, aiming to reduce or eliminate mercury use by 2025–2027.

Sources

<https://eti.gy/mining-sector/#:~:text=These%20private%20shops%20may%20offer,the%20Minamata%20Convention%20on%20Mercury.>

J. Remediation and Biodiversity Strategy Integration

Score: 0.33 / 1.00

Is ASM gold mining recognized in the country's National Biodiversity Strategy and Action Plan (NBSAP)?

0.0

Criterion 48

Justification

Guyana's National Biodiversity Strategy and Action Plan (NBSAP) 2012-2020 acknowledges gold mining as a significant economic activity and a threat to biodiversity, but does not explicitly recognize "Artisanal and Small-scale Mining (ASM)" as a distinct category. The document mentions "gold mining" in the context of its economic contribution and explicitly lists "mining (legal and illegal)" as a direct threat to forests and savannahs, and notes "loss of aquatic biodiversity resulting from land and river mining; degradation of water quality due to mining and agricultural practices" as threats to inland aquatic ecosystems. The NBSAP refers to "small and large scale mining" when discussing mining infrastructure, but does not provide specific recognition or strategies tailored to ASM gold mining within the document. While the NBSAP discusses gold mining and its impacts on biodiversity, the lack of explicit recognition of ASM as a distinct category with tailored approaches results in a score of 0.

Sources

Primary Sources:

- Guyana's National Biodiversity Strategy and Action Plan (NBSAP) (2012-2020).

Available at: <https://www.cbd.int/doc/world/gy/gy-nbsap-v3-en.pdf>

Secondary Sources:

- Artisanal gold mining and biodiversity: restoring the balance | planetGOLD. Available at:

<https://www.planetgold.org/artisanal-gold-mining-and-biodiversity-restoring-balance>

- Integrating Biodiversity across Gold mining Industry in Guyana (WWF-LAC). Available

at: https://wwflac.awsassets.panda.org/downloads/biodev_2030_guyana_report_two.pdf

Does the country have specific programs, targets, or funding mechanisms for ecosystem restoration in areas affected by ASM gold mining?

0.0

Criterion 49

Justification

Guyana has initiated several policy and regulatory frameworks that address environmental management and reclamation in the mining sector, including ASM, but lacks specific, dedicated programs with explicit targets and funding mechanisms solely for ecosystem restoration in ASM-affected areas. The National Mineral Sector Policy Framework mentions "reclamation of mined-out areas" as a strategy and emphasizes the "sustainable development principle." The Code of Practice for Mine Reclamation and Closure Plans provides detailed guidance for restoration and remediation, with its mission "To foster sustainable practices so as to prevent and minimize adverse long-term environmental impacts generated by small- and medium-scale mines in Guyana." The Guyana National Action Plan for ASGM addresses environmental management and includes strategies for mercury reduction. However, these frameworks provide guidance and general requirements rather than constituting comprehensive, funded programs with specific targets for ecosystem restoration in ASM areas.

Sources

Primary Sources:

- National Mineral Sector Policy Framework and Actions, 2019-2029. Ministry of Natural Resources. Available at:

<https://nre.gov.gy/wp-content/uploads/2018/10/National-Mineral-Sector-Policy-Framework-and-Actions-2019-2029.pdf>

- Code of Practice for Mine Reclamation and Closure Plans in Guyana's Small and Medium-Scale Mining (2003). Available at:

<https://www.ggmc.gov.gy/document/code-of-practice-for-mine-reclamation-rev1-guyanaenvironmental-capacity-development-project-gencapd/>

- Guyana National Action Plan for Artisanal and Small-Scale Gold Mining (NAP-ASGM) (2021). Available at:

https://minamataconvention.org/sites/default/files/documents/national_action_plan/Guyana-ASGM-NAP-2021-EN.pdf

Secondary Sources:

- planetGOLD Guyana project. Available at: <https://www.planetgold.org/guyana>

- TECHNICAL REPORT On the Artisanal and Small-Scale Gold Mining Sector in Guyana.

Available at:

<https://www.planetgold.org/sites/default/files/planetGOLD%20-%20GUY%20Technical%20Report%20-%20FINAL.pdf>

Are there requirements or guidance for restoration, remediation, or compensation for degraded areas?

1.0

Criterion 50

Justification

Guyana has comprehensive requirements and guidance for restoration, remediation, and compensation for degraded areas affected by mining activities. The Code of Practice for Mine Reclamation and Closure Plans provides detailed guidance and requirements for the restoration and remediation of mined-out areas, with clear objectives including restoring mining sites to a satisfactory condition, eliminating health hazards, limiting pollution, and reclaiming areas for future use. The Environmental Protection Act includes provisions for compensation for environmental damage and loss of property due to environmental harm. The Mining Act 1989 provides for the suspension or revocation of mining licenses for non-compliance with environmental and social obligations. These legal and policy instruments create a strong framework for holding mining operators accountable for the environmental impacts of their activities and ensuring that degraded areas are properly restored.

Sources

Primary Sources:

- Code of Practice for Mine Reclamation and Closure Plans in Guyana's Small and Medium-Scale Mining (2003). Available at:

https://www.ggmc.gov.gy/document/code-of-practice-for-mine-reclamation-rev1-guyana_x0002_environmental-capacity-development-project-gencapd/

- Environmental Protection Act, Chapter 20:05, Laws of Guyana. Available at:

https://www.ggmc.gov.gy/ggmc_web/wp-content/uploads/2024/09/environmental_protection_act_cap2005_1998.pdf

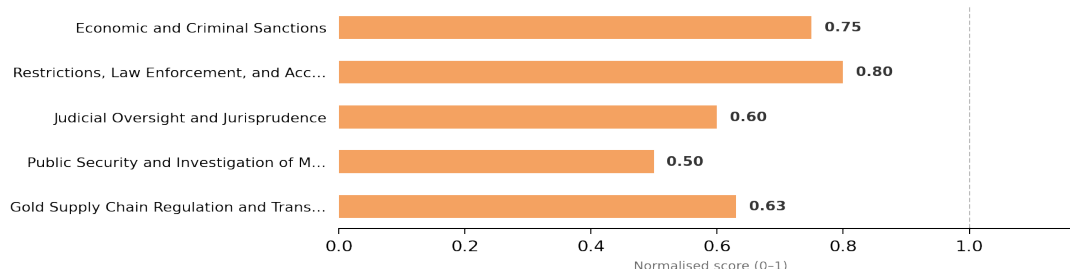
- Mining Act 1989 (Act No. 20 of 1989). Available at:

https://www.parliament.gov.gy/new2/documents/acts/8532-act_20_of_1989_mining.pdf

III. Investigation and enforcement

3.28 / 5.00

Category scores



K. Gold Supply Chain Regulation and Transparency

Score: 0.63 / 1.00

Does the country require formal registration of all actors in the ASM gold supply chain (miners, traders, and exporters)?

1.0

Criterion 51

Justification

Guyana has a comprehensive legal and regulatory framework for the formal registration of ASM gold supply chain actors, including miners, traders, and exporters. The Mining Act 1989 and the Guyana Gold Board (Dealers) Regulations 1997 clearly outline the requirements for obtaining licenses and authorizations, as well as the duties and obligations of these actors. The system includes provisions for application, fees, eligibility, operational conditions, record-keeping, and export procedures, indicating a well-established formal registration process.

Sources

Primary Sources:

- Mining Act 1989:

https://www.parliament.gov.gy/new2/documents/acts/8532-act_20_of_1989_mining.pdf

- Guyana Gold Board (Dealers) Regulations 1997:

<https://ggb.gov.gy/wp-content/uploads/2025/07/Guyana-Gold-Board-Dealers-Regulations-No.-4-of-1997.pdf>

Secondary Sources:

- PlanetGOLD Guyana. 2022. Training Module 3. Due Diligence:

<https://www.planetgold.org/sites/default/files/planetGOLD%20Guyana.%202022.%20Training%20Module%203.%20Due%20Diligence.pdf>

- Licensed Gold Dealers – Guyana Gold Board: <https://ggb.gov.gy/dealers/>

- Application for Trading License – GGMC:

<https://www.ggmc.gov.gy/ggmc-service/application-for-trading-license/>

Are there specific permits or procedures required for exporting ASM gold?

1.0

Criterion 52

Justification

Guyana has specific permits and procedures required for the export of gold from ASM. The Guyana Gold Board Act of 1981 establishes the Guyana Gold Board as the central authority for gold transactions, including export. While it

initially restricts export to the Board, it also provides a mechanism (Section 9(1)) for the Board to authorize other persons to export gold under prescribed conditions. This indicates a clear regulatory framework for gold export.

Sources

Primary Sources:

- Guyana Gold Board Act No. 12 of 1981 (Consolidated). Parliament of Guyana. URL: https://parliament.gov.gy/documents/acts/8273-act_no._12_of_1981_guyana_gold_board_act_1981.pdf

- Licensed Gold Dealers – Guyana Gold Board. URL: <https://ggb.gov.gy/dealers/>

- Standard-Operating-Procedures-for-Issuing-Gold-Dealers-Licence.pdf. Guyana Gold Board. URL: <https://ggb.gov.gy/wp-content/uploads/2023/09/Standard-Operating-Procedures-for-Issuing-Gold-Dealers-Licence.pdf>

- Partnership-Application-to-sell-posses-or-export-gold-form.pdf. Guyana Gold Board. URL:

<https://ggb.gov.gy/wp-content/uploads/2020/01/Partnership-Application-to-sell-posses-or-export-gold-form.pdf>

Secondary Sources:

- Mining Sector. EITI Guyana. URL: <https://eiti.gy/mining-sector/>

- Who can legally purchase gold in Guyana? Facebook. URL: <https://www.facebook.com/groups/1653910321314304/posts/9753861864652402/>

Are files on ASM areas, including titles, licenses, embargoes, and monitored zones, available in open, updated formats compatible with geospatial analysis systems?

0.0

Criterion 53

Justification

While geospatial data for medium and large-scale mining is available in compatible formats, the explicit lack of small-scale mining (ASM) tenure data significantly hinders full compliance with the criterion. The availability of data at a fee and the absence of an open data policy also suggest limitations in 'open' access.

Sources

Primary Sources:

- The GGMC Mineral Tenure:

<https://storymaps.arcgis.com/stories/790ce0003be5464a815be1862ff594d9>

- Guyana Geology and Mines Commission (GGMC) website: <https://www.ggmc.gov.gy/>

Secondary Sources:

- Hook, A. (2019). Fluid formalities: Insights on small-scale gold mining formalization in Guyana. *World Development*, 117, 1-12.

- EITI. (2022). Guyana has achieved a fairly low overall score in...

<https://eiti.org/board-decision/2022-20>

- PlanetGOLD. (n.d.). TECHNICAL REPORT On the Artisanal and Small-Scale...

<https://www.planetgold.org/sites/default/files/planetGOLD%20-%20GUY%20Technical%20Report%20-%20FINAL.pdf>

Is there a strategy in place to ensure the traceability of gold from extraction to final sale?

0.5

Criterion 54

Justification

Guyana has established traceability mechanisms for gold through the Guyana Gold Board (GGB) and its associated regulations. However, despite these regulations, secondary sources indicate existing gaps in the supply chain that affect transparency and efficiency, particularly in the ASM sector. The lack of a fully integrated digital system and

challenges in monitoring remote mining operations are key weaknesses.

Sources

Primary Sources:

- Guyana Gold Board (Dealers) Regulations No. 4 of 1997:

<https://ggb.gov.gy/wp-content/uploads/2025/07/Guyana-Gold-Board-Dealers-Regulations-No.-4-of-1997.pdf>

Secondary Sources:

- PlanetGOLD Guyana. 2022. Training Module 3. Chain of Custody & Due Diligence:

<https://www.planetgold.org/sites/default/files/planetGOLD%20Guyana.%202022.%20Training%20Module%203.%20Chain%20of%20Custody%20%26%20Due%20Diligence.pdf>

Is disclosure of transactions between miners, traders, and exporters mandatory?

1.0

Criterion 55

Justification

The disclosure of transactions between miners, traders, and exporters is mandatory in Guyana. The Guyana Gold Board (Dealers) Regulations 1997 require licensed dealers to maintain detailed records of all transactions and submit bi-weekly extracts to the GGB. This provides a clear legal basis for mandatory disclosure.

Sources

Primary Sources:

- Guyana Gold Board (Dealers) Regulations No. 4 of 1997:

<https://ggb.gov.gy/wp-content/uploads/2025/07/Guyana-Gold-Board-Dealers-Regulations-No.-4-of-1997.pdf>

Does the legal framework require financial institutions to verify the legal provenance of gold-related transactions?

1.0

Criterion 56

Justification

While Guyana's Anti-Money Laundering and Countering the Financing of Terrorism (AML/CFT) Act of 2009 (amended in 2015) requires financial institutions to conduct due diligence, there are gaps in its specific application and enforcement in the gold sector. The Financial Action Task Force (FATF) has noted deficiencies in Guyana's AML/CFT framework, and the US Department of State has highlighted the vulnerability of the gold sector to money laundering. This suggests that while due diligence requirements exist, their implementation is not fully effective.

Sources

Primary Sources:

- Anti-Money Laundering and Countering the Financing of Terrorism Act 2009:

<https://www.antimoneylaundering.gov.gy/wp-content/uploads/2021/03/AML-CFT-Act-No13-of-2009.pdf>

Secondary Sources:

- Financial Action Task Force (FATF) - Guyana:

<https://www.fatf-gafi.org/en/countries/detail/Guyana.html>

- 2022 International Narcotics Control Strategy Report (INCSR) - Guyana:

<https://www.state.gov/reports/2022-international-narcotics-control-strategy-report/volume-ii-money-laundering/guyana/>

Is there a centralized digital/electronic registry for gold supply chain transactions accessible to regulatory authorities and civil society?

0.5

Criterion 57

Justification

Guyana has a centralized registry of gold supply chain transactions managed by the GGB, but it is not publicly accessible to civil society. While regulatory authorities have access to the data, the lack of public access limits transparency and accountability. The GGB's website provides some information on licensed dealers but does not offer a comprehensive, publicly accessible database of transactions.

Sources

Primary Sources:

- Guyana Gold Board (GGB) website: <https://ggb.gov.gy/>

Secondary Sources:

- Extractive Industries Transparency Initiative (EITI) Guyana:

<https://eiti.org/countries/guyana>

Are there protocols for information sharing and joint enforcement with neighboring countries?

1.0

Criterion 58

Justification

Guyana has established several protocols, Memoranda of Understanding (MoUs), and joint initiatives for information sharing and joint enforcement with its neighbors—Brazil, Suriname, and Venezuela—primarily focused on fighting transnational organized crime, drug trafficking, and money laundering. Key efforts include, Interinstitutional Cooperation Agreements with Brazil (focused on public security and police intelligence) and efforts to establish joint patrols with Brazil and Suriname.

Sources

https://moha.gov.gy/guyana-and-brazil-inks-interinstitutional-cooperation-agreements/#:~:text=The%20Co%2Doperati%20Republic%20of%20Guyana%20and%20the,information%20on**:%20*%20Public%20security%20*%20Prevent ion

L. Public Security and Investigation of Mining-Related Crimes

Score: 0.50 / 1.00

Do public security bodies have specific strategies in place for safeguarding Indigenous and traditional communities against crimes related to mining in their territories?

0.0

Criterion 59

Justification

While legal frameworks like the Amerindian Act 2006 acknowledge Indigenous rights, there is no evidence of specific, proactive strategies by public security forces to protect Indigenous communities from mining-related crimes. Government interventions appear to be reactive rather than part of a defined protective strategy, and reports indicate ongoing human rights abuses and conflicts related to mining in Indigenous areas.

Sources

Primary Sources:

- Amerindian Act 2006: <https://moaa.gov.gy/legislation-the-amerindian-act/>

- Mining Act 1989:

https://www.parliament.gov.gy/new2/documents/acts/8532-act_20_of_1989_mining.pdf

Secondary Sources:

- Harvard Law Report "All That Glitters: Gold Mining in Guyana":

https://hrp.law.harvard.edu/wp-content/uploads/2013/02/959_file_AllThatGlitters_FINAL_.pdf

- 2023 Country Reports on Human Rights Practices: Guyana:

<https://www.state.gov/reports/2023-country-reports-on-human-rights-practices/guyana/>

Are there specialized police and prosecutor units for environmental crimes or illegal mining with effective coverage in critical areas?

1.0

Criterion 60

Justification

While Guyana has an 'Environmental Police Unit' and an 'Environmental Intelligence Unit', and both police and prosecutors receive training on environmental crimes, there is a lack of detailed information on their specific mandates, staffing, and operational effectiveness. The effective coverage of these units in all critical mining areas is also not clear, suggesting that while specialized units exist, their capacity and reach may be limited.

Sources

Primary Sources:

- UNODC Annual Report 2023:

https://www.unodc.org/res/environment-climate/resources_html/Annual_Report_GPCAE_2023.pdf

- OAS Document on Director of Public Prosecutions (DPP) in Guyana:

https://www.oas.org/juridico/pdfs/mesicic4_guy_dpp.pdf

- EPA Guyana website: <https://epaguyana.org/>

Secondary Sources:

- Earth League International Environmental Crime Convergence Report:

<https://earthleagueinternational.org/wp-content/uploads/2023/06/ELI-Environmental-Crime-Convergence-Report-June-2023.pdf>

Is there a clear procedure for investigating crimes related to mining?

0.0

Criterion 61

Justification

While general criminal investigation procedures exist, there is no evidence of a clear, specific procedure for investigating mining-related crimes. The lack of specialized protocols can hinder effective investigation and prosecution of these complex offenses, which often involve environmental, social, and economic dimensions.

Sources

Primary Sources:

- Police Act (Cap. 16:01):

<https://www.prosecutions.gov.gy/wp-content/uploads/2020/06/Police-Act-Cap-16.01.pdf>

Does the country have bilateral or multilateral protocols or agreements in place to coordinate joint police operations for the enforcement of environmental and mining laws?

1.0

Criterion 62

Justification

Guyana utilizes both national inter-agency mechanisms and international partnerships to enforce environmental and mining laws. The government, through the Ministry of Natural Resources and the Guyana Geology and Mines Commission (GGMC), executes joint operations with the police to curb illegal mining. These operations are increasingly coordinated through the newly launched National Anti-Illegal Mining Operations Secretariat (NAIMOS).

Sources

[https://dpi.gov.gy/ggmc-calls-on-all-miners-to-comply-with-mining-laws-or-face-consequences/#:~:text=The%20Guyana%20Geology%20and%20Mines%20Commission%20\(GGMC\),Environmental%20stewardship%20*%20Employment%20of%20undocumented%20persons](https://dpi.gov.gy/ggmc-calls-on-all-miners-to-comply-with-mining-laws-or-face-consequences/#:~:text=The%20Guyana%20Geology%20and%20Mines%20Commission%20(GGMC),Environmental%20stewardship%20*%20Employment%20of%20undocumented%20persons)

M. Judicial Oversight and Jurisprudence

Score: 0.60 / 1.00

Have courts issued binding decisions related to illegal gold mining or its socio-environmental impacts in the last five years?

1.0

Criterion 63

Justification

Guyanese courts have issued binding decisions related to illegal gold mining and its socio-environmental impacts in recent years. These decisions have addressed issues such as land rights, environmental damage, and the legality of mining operations, demonstrating the judiciary's role in shaping mining governance.

Sources

Secondary Sources:

- "High Court rules against illegal mining in Indigenous community" - News Source

Guyana:

<https://newssourcegy.com/news/high-court-rules-against-illegal-mining-in-indigenous-community/>

Have judicial decisions or jurisprudence recognizing natural ecosystems as subjects of rights generated legal restrictions, obligations, or the imposition of sanctions in legal cases related to mining activities?

0.0

Criterion 64

Justification

There is no evidence of judicial decisions or jurisprudence in Guyana that recognize natural ecosystems as subjects of rights. The legal framework remains anthropocentric, and there have been no cases where legal restrictions or sanctions have been imposed on mining activities based on the rights of nature

Sources

No sources found

Can individuals or communities file collective environmental actions or constitutional remedies in mining-related cases?

1.0

Criterion 65

Justification

The Constitution of Guyana allows for individuals and communities to file collective environmental actions and constitutional remedies in mining-related cases. Article 153 of the Constitution provides for the enforcement of

protective provisions, which can be used to address environmental and social impacts of mining.

Sources

Primary Sources:

- Constitution of the Co-operative Republic of Guyana:

https://www.parliament.gov.gy/new2/documents/constitution-of-guyana/9035-constitution_of_the_co-operative_republic_of_guyana.pdf

Is judicial action allowed in defense of diffuse environmental interests (such as ecosystem protection or public health) without the need to demonstrate individual harm?

1.0

Criterion 66

Justification

The legal framework in Guyana allows for judicial action in defense of diffuse environmental interests without the need to demonstrate individual harm. The broad standing provisions in the Constitution and environmental legislation enable civil society organizations and individuals to bring cases on behalf of the environment and public health.

Sources

Primary Sources:

- Constitution of the Co-operative Republic of Guyana:

https://www.parliament.gov.gy/new2/documents/constitution-of-guyana/9035-constitution_of_the_co-operative_republic_of_guyana.pdf

Is there an interstate coordination mechanism for the investigation and prosecution of transboundary environmental crimes related to mining?

0.0

Criterion 67

Justification

While Guyana participates in regional initiatives and has bilateral agreements that could facilitate coordination on transboundary environmental crimes, there is no specific, dedicated interstate mechanism for the investigation and prosecution of these offenses. The existing cooperation is ad hoc and lacks the formal structure needed for effective enforcement.

Sources

https://moha.gov.gy/guyana-and-brazil-inks-interinstitutional-cooperation-agreements/#:~:text=The%20Co-operative%20Republic%20of%20Guyana%20and%20the,information%20on**:%20*%20Public%20security%20*%20Prevention
No sources found for interstate mechanism

N. Restrictions, Law Enforcement, and Accountability

Score: 0.80 / 1.00

Does the government enforce compliance of regulations related to illegal ASM, including through sanctions for environmental damages and non-compliance?

1.0

Criterion 68

Justification

While the government conducts enforcement operations against illegal ASM, their effectiveness is limited by the vast and remote nature of mining areas, resource constraints, and challenges in sustaining enforcement efforts. Reports of ongoing illegal mining suggest that enforcement is not consistently effective across all mining districts

Sources

Secondary Sources:

- "Joint services destroy illegal mining camps" - Department of Public Information, Guyana: <https://dpi.gov.gy/joint-services-destroy-illegal-mining-camps/>

Can licenses be suspended or revoked in cases of environmental law violations or social violations?

1.0

Criterion 69

Justification

Licenses can be suspended or revoked in Guyana for environmental and social violations. The Environmental Protection Act of 1996 and related regulations empower authorities to cancel or suspend environmental authorizations for pollution or violations. The Guyana Forestry Commission can revoke permits for breaches, and strict penalties exist for violations.

Sources

Environmental Protection Act of 1996

Environmental Protection (Authorisations) Regulations 2000: https://www.swm-programme.info/c/document_library/get_file?uuid=ce579c6b-21a8-0aa0-0f72-fd7f5810ccc8&groupId=20142

Are there specific sanctions or criminal categories related to damage caused by mercury? *0.5 may be given in cases where there is general sanctions on waste disposal and environmental harm, but none directly related to mercury.

1.0

Criterion 70

Justification

Guyana has specific regulatory frameworks and criminal categories related to the importation, handling, and environmental damage caused by mercury, largely driven by its commitment to the Minamata Convention on Mercury. The legal framework emphasizes environmental protection and safety in gold mining, where mercury is most commonly used.

Sources

Environmental Protection Act, Cap. 20:05: <https://epaguyana.org/download/mining-and-mercury-what-you-need-to-know-about-mercury-exposure/?wpdmdl=1271&refresh=69a7ecf49fad51772612852>

Is there any legal obligation to adopt rehabilitation and/or compensation measures where environmental damage has been found?

1.0

Criterion 71

Justification

The legal framework in Guyana includes a clear obligation for mining operators to adopt rehabilitation measures and provide compensation for environmental damage. The Environmental Protection Act and the Mining Regulations require operators to submit environmental management plans that include provisions for mine closure and reclamation.

Sources

Primary Sources:

- Environmental Protection Act 1996:

<https://www.epaguyana.org/epa/forms-and-booklets/category/2-acts>

- *Guidelines for Environmental Mining Regulations (2004):*
https://www.ggmc.gov.gy/ggmc_web/wp-content/uploads/2024/10/Guidelines_Environmental_Mining_06012004.pdf

Can sanctions be applied based on remote evidence (e.g., satellite images)?

0.0

Criterion 72

Justification

While there is no explicit legal provision that allows for the application of sanctions based solely on remote evidence, the use of satellite imagery and other remote sensing technologies is being explored as a tool for monitoring and enforcement. The lack of a clear legal framework for the use of such evidence in legal proceedings is a gap that needs to be addressed.

Sources

No sources found

O. Economic and Criminal Sanctions

Score: 0.75 / 1.00

Are there clear legal sanctions for environmental crimes related to ASM?

1.0

Criterion 73

Justification

The Environmental Protection Act and other related legislation provide for clear legal sanctions for environmental crimes related to ASM. These sanctions include fines and imprisonment, and are designed to deter illegal mining and other environmentally destructive practices.

Sources

Primary Sources:

- *Environmental Protection Act 1996:*
<https://www.epaguyana.org/epa/forms-and-booklets/category/2-acts>

Are criminal networks involved in illegal gold trade targeted by enforcement agencies?

1.0

Criterion 74

Justification

Yes, criminal networks involved in the illegal gold trade are targeted by enforcement agencies in Guyana. Enforcement action particularly through INTERPOL-supported operations such as Operation Guyana Shield have explicitly focused on organised crime groups involved in illegal mining, gold smuggling, mercury trafficking, and related money laundering offences. However, these efforts remain largely ad hoc and law enforcement driven, rather than embedded in a permanent environmental crime governance framework.

Sources

<https://www.stabroeknews.com/2026/01/23/news/guyana/guyana-among-four-countries-in-first-joint-crackdown-on-illegal-gold-mining/>
https://international-partnerships.ec.europa.eu/policies/programming/programmes/el-paccto-20_en

Are economic sanctions applied to companies or individuals trading in illicit gold?

0.0

Criterion 75

Justification

While the legal framework allows for the application of economic sanctions to companies and individuals trading in illicit gold, their enforcement has been weak. The lack of a comprehensive traceability system and challenges in identifying and prosecuting offenders have limited the effectiveness of economic sanctions. Although the government has mentioned to sanction companies trading in illicit gold., these sanction have noet yet been implemented.

Sources

Gold dealers' licences will be revoked for facilitating under-declarations – Demerara Waves Online News- Guyana
<https://www.stabroeknews.com/2025/12/13/news/guyana/ministry-announces-steps-to-tackle-illegal-gold-trade/>

Can environmental and mining authorities impose sanctions independently of a criminal process (administrative sanctions)?

1.0

Criterion 76

Justification

Environmental and mining authorities in Guyana have the power to impose administrative sanctions independently of a criminal process. The Environmental Protection Agency and the Guyana Geology and Mines Commission can issue fines, stop-work orders, and other administrative penalties for non-compliance with environmental and mining regulations.

Sources

Primary Sources:

- *Environmental Protection Act 1996:*

<https://www.epaguyana.org/epa/forms-and-booklets/category/2-acts>

- *Mining Act 1989:*

https://www.parliament.gov.gy/new2/documents/acts/8532-act_20_of_1989_mining.pdf

Amazon Mining Policy Scoreboard

Led by Amazon Conservation Association · amazonconservation.org

In collaboration with: Pulitzer Center · Rainforest Investigations Network · Earth Genome